

The Goa Non-Biodegradable Garbage (Control) Act, 1996

Source: <https://indiankanoon.org/doc/171864609/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

[Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions](#)

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[Cites

0

, Cited by

0

]

State of Goa - Act

The Goa Non-Biodegradable Garbage (Control) Act, 1996

GOA

India

The Goa Non-Biodegradable Garbage (Control) Act, 1996

Act 5 of 1997

Published on 12 March 1997

Commenced on 12 March 1997

[This is the version of this document from 12 March 1997.]

[Note: The original publication document is not available and this content could not be verified.]

The Goa Non-Biodegradable Garbage (Control) Act, 1996

(Goa Act

No. 5 of 1997

)

[Dated 12-3-1997]

An Act to prevent throwing, or depositing non-biodegradable garbage in public drains, roads and place open to public view in the State of Goa and for matter connected therewith or incidental thereto.

Be it enacted by the Legislative Assembly of Goa in the Forty-seventh Year of the Republic of India as follows:-

1.

Short title, extent and commencement.

(1)

The Act may be called the Goa Non-Biodegradable Garbage (Control) Act, 1996.

(2)

It extends to the whole of the State of Goa.

(3)

It shall come into force on such date as the State Government may, by notification, in the Official Gazette appoint and different dates may be appointed for different areas.

2.

Definitions.

- In this Act, unless the context otherwise requires,-

(a)

"biodegradable garbage" means the garbage or waste materials capable of being destroyed by the action of living beings;

(b)

"house gully" means a passage or strip of land constructed, set apart or utilised for the purpose of serving as or carrying a drain or affording access to the latrine, urinals, cesspool or other receptacle for filth or other polluted matter, by persons employed in the clearing thereof in the removal of such matter therefrom;

(c)

"local authority" means a Municipal Council, a Zilla Panchayat or a Panchayat constituted, or continued, under any law for the time being in force;

(d)

"market" includes any place where persons assemble for exposing for sale, meat, fish, fruits, vegetables, food or any other articles for human use or consumption with or without the consent of the owner of such place notwithstanding that there may be no common regulation for the concourse of the buyers and the sellers and whether or not any control is exercised over the business of or the person frequenting, the market by the owner of the place or by any other persons;

(e)

"non-biodegradable garbage" means the waste garbage or material which is not biodegradable garbage and includes polyethylene, nylon and other plastic goods such as P. V. C. polypropylene and polystyrene which are not capable of being destroyed by an action of living beings and are more specifically included in the schedule to this Act;

(f)

"occupier" includes,-

(i)

any person who for the time being is paying or is liable to pay to the owner the rent or any portion of the rent of the land or building in respect of which such rent is paid or is payable;

(ii)

an owner in occupation of or otherwise using his land or building;

(iii)

a rent free tenant of any land or building; and

(iv)

any person who is liable to pay to the owner damages for the use and occupation of any land or building;

(g)

"Official Gazette" means the Official Gazette of the Government;

(h)

"owner" includes a person who for the time being is receiving or is entitled to receive, the rent of any land or building, whether on his own account or on account of himself and others or an agent, trustee, guardian or receiver for any other or who should so receive the rent or be entitled to receive it if the land or building or part thereof were let to a tenant;

(i)

"place" means any land or building or part of a building and includes the garden, ground and outhouses, if any, pertaining to a building or part of a building;

(j)

"place open to public view" includes any private place, building, monument, fence or balcony visible to a person being in, or passing along, any public place;

(k)

"prescribed" means prescribed by rules made under this Act;

(l)

"Public Analyst" means the person appointed or recognised to be the Government Analyst, in relation to any environmental laboratory established or recognized in the State under the provisions of the Environment (Protection) Act, 1986 (Central Act 29 of 1986).

(m)

"public place" means any place which is open to use and enjoyment of the public whether it is actually used or enjoyed by the public or not and includes a road, street, market, house-gully or way, whether a thoroughfare or not, and landing place to which public are granted access or have a right to resort or over which they have a right to pass; and

(n)

"State Government" means the Government of Goa.

3.

Prohibition to throw garbage in public places, drains and sewage.

(1)

No person, by himself or through another, shall knowingly or otherwise throw or cause to be thrown in drain, ventilation shaft, pipe and fittings, connected with the private or public drainage works, any non-biodegradable garbage or any biodegradable garbage in a non-biodegradable bag or container likely to-

(i)

injure the drainage and sewage system;

(ii)

interfere with the free flow or affect the treatment and disposal of drain sewage contents; and

(iii)

be dangerous or cause a nuisance or be prejudicial to public health.

(2)

No person shall, knowingly or otherwise, place or permit to be placed, except in accordance with such procedure and after complying with such safeguards as may be prescribed, any biodegradable or non-biodegradable garbage in any public place or in a place open to public view, unless-

(a)

the garbage is placed in a garbage receptacle, or

(b)

the garbage is deposited in a location designated, by a local authority having jurisdiction on an area for the disposal of garbage.

4.

Provision for placement of receptacles and places for deposit of non-biodegradable garbage.

- It shall be the duty of the local authority, or any officer authorised by it to-

(a)

place or provide or place in proper and convenient situation public receptacles, depots or places for temporary deposit or collection of non-biodegradable garbage;

(b)

provide separate dustbins for temporary deposit of non-biodegradable garbage other than those kept and maintained for deposit of biodegradable garbage;

(c)

provide for the removal of contents of receptacles, deposit and of the accumulation at all places provided or appointed by it under clause (a) of this section; and

(d)

arrange for recycling of the non-biodegradable garbage collected under this Act.

5.

Duty of owners and occupiers to collect and deposit non-biodegradable garbage, etc.

- It shall be the duty of the owners and occupiers of all lands and buildings-

(a)

to collect or to cause to be collected from their respective land and buildings the non-biodegradable garbage and to deposit or cause to be deposited, in public receptacles deposits or places provided for temporary deposit or collection of the non-biodegradable garbage by the local authority in the area;

(b)

to provide separate receptacles or dustbins other than, those kept and maintained for deposit of biodegradable garbage, of the type and in the manner prescribed by the local authority or its officers for collection therein of all the non-biodegradable waste from such land and buildings and to keep such receptacles, dustbins in good conditions and repair.

6.

Power of local authority for removal of non-biodegradable garbage.

- The local authority may by notice in writing, require the owner or occupier or part-owner, or person claiming to be the owner or part-owner of any land or building which has become a place of unauthorised stacking or deposit of non-biodegradable garbage and is likely to occasion a nuisance, remove or cause to be removed the said garbage so stacked or collected; and if, in its opinion such stackings or collection of non-biodegradable waste is likely to injure the drainage and sewage system or is likely to be dangerous to life and health, it shall forthwith take such steps, at the cost of such persons as it may think necessary.

7.

Studies, research and support programme.

- The State Government may-

(a)

undertake studies to determine the composition of biodegradable or non-biodegradable garbage;

(b)

establish measures to conduct or support research or programmes to encourage source reduction, re-use and recycling of waste;

(c)

conduct or support studies to determine the social and economic feasibility of household and other solid waste separation schemes, including studies of the type and amount of recyclable materials in solid wastes;

(d)

encourage local authorities in the State to provide readily accessible solid waste collection depots for residents who are not provided with regular garbage pick-up;

(e)

undertake and encourage, local authorities and other persons to implement policies to recycle waste materials, to promote energy conservation and to purchase products made from recyclable materials;

(f)

conduct and support research on recycling including information on operating recycling business and market information on recyclables;

(g)

conduct and support research on waste management and recycling, for use in educating the public, local authorities, institutions and industry; and

(h)

impose requirements on manufacturers, distributors and other persons who produce or handle commodities with respect to the type, size, packaging, labelling and composition of packaging that may or must be used and with respect to the disposal of packaging including standards for material degradability and recyclability.

"[(i)] Levy a cess at such rates as may be determined by the Government from time to time, by notification in the Official Gazette but not exceeding Rs. 2/- per item marketed on non- biodegradable packaging material including bottles and containers, which shall be utilized for segregation, collection, safe disposal and recycling of non-biodegradable waste material and also to promote the sale and use of biodegradable packaging material, bags and containers.]

[Inserted by the Amendment Act 28 of 2000 vide Notification No. 7/29/2000/LA dated 29-09-2000 [Published in Official Gazette (Extraordinary), Series I No. 26 dated 29-09-2000].]

".

8.

Penalties.

(1)

Whoever is guilty of any act or intentional omission in contravention of any of the provisions of this Act, or of any rules, notification or order made, issued or given under this Act, shall be punishable with imprisonment for a term which may extend to one month or with fine which may extend to rupees five thousand, or with both.

(2)

Whoever having been convicted of an offence under this Act is again convicted of any offence under this Act shall be punishable with double the penalty provided for the latter offence.

(3)

Whoever in any manner aids abets or is accessory to the commission of an offence under this Act shall on conviction be punished with imprisonment prescribed for the offence.

9.

Offences by Companies.

(1)

If the person committing any offence punishable under this Act is a Company, every person who, at the time of the commission of the offence, was incharge of, and responsible to the Company for the conduct of the business of the company, as well as the Company shall be deemed to be guilty of the offence and shall be liable to be proceeded against and punished accordingly:

Provided that nothing contained in this sub-section shall render any such person liable to any punishment provided in this Act, if he proves that the offence was committed without his knowledge or that he exercised all due diligence to prevent the commission of the offence.

(2)

Notwithstanding anything contained in sub-section (1), where an offence under this Act has been committed by a Company and it is proved that the offence has been committed with the consent or connivance of, or is attributable to any gross negligence on the part of any Director, Manager, Secretary or other officer of the Company, such Director, Manager, Secretary or other officer shall also be deemed to be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

Explanation. - For the purposes of this section-

(a)

"Company" means any body corporate and includes a firm or other association of individuals; and

(b)

"Director" in relation to a firm means a partner in the firm.

10.

Offences to be tried summarily.

- All offences under this Act shall be tried in a summary way by a Judicial Magistrate of the First Class and the provisions of sections 262 to 265 (both inclusive) of the Code of Criminal Procedure 1973 (Central Act 2 of 1974) shall, as far as may be, apply to such trials.

11.

Compounding of offences.

(1)

Any offence punishable under this Act may, before the institution of the prosecution, be compounded by such officer as may be authorised by the State Government in this behalf, on payment, for credit to the State Government, of such sums as such officer may specify.

(2)

Where any offence has been compounded under sub-section (1) no proceedings shall be taken against the offenders, in respect of the offence as compounded, and the offender, if in custody, shall be discharged.

12.

Directions by the State Government.

- The local authority shall carry out such directions as may be issued to it, from time to time by the State Government for the efficient administration of this Act.

13.

Power to amend schedule.

(1)

Where it is expedient to do so, the State Government may, in the public interest and in consultation with the Public Analyst, by notification in the Official Gazette, add to, or omit from the schedule any item of non-biodegradable waste and thereafter the schedule shall be deemed to be amended accordingly.

(2)

Every notification under sub-section (1) shall be laid as soon as may be after it is made, before the State Legislative Assembly.

14.

Power to delegate.

- The State Government may, by order published in the Official Gazette, direct that any power exercisable by it under this Act (not including the power to make rules under section 17) may also be exercised in such cases as may be specified in the order, by such officer or authority as may be specified therein.

15.

Protection of action taken in good faith.

- No suit, prosecution or other legal proceedings shall lie against the State Government or the local authority or any officer or other employees of the State Government or the local authority or any other person authorised by the State Government for anything which is in good faith done or intended to be done under this Act or the Rules made thereunder.

16.

Other laws not affected.

- The provisions of this Act are in addition to, and not in derogation of the provisions of any other law for the time being in force.

17.

Power to make rules.

- The State Government may, subject to the condition of previous publication, make rules for the purpose of carrying out the provisions of this Act.

Schedule

[See section 2(e)]

Non-Biodegradable Garbage

(1)

Polyethylene;

(2)

Polycarbonate;

(3)

Polypropylene;

(4)

Polystyrene;

(5)

Polyvinyl Chloride (PVC);

(6)

ABS;

(7)

Acetal;

(8)

Acrylic;

(9)

Cellulose Acetate;

(10)

Cellulose Acetate Butyrate;

(11)

Nylon.

Related AI tags, queries and research notes

Translation